

CV-23-005739 TALAVERA, ROSENDO CONTRERAS vs GENERAL MOTORS LLC - Defendant General Motors LLC's Motion to Tax Counsel's Memorandum of Costs - DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Preliminarily, the Court notes that Civ. Code § 1794(d) allows for a prevailing plaintiff to recover costs and expenses beyond those enumerated in Code Civ. Proc. § 1033.5. (See, e.g. Jensen v. BMW of North America (1995) 35 Cal.App.4th 112, 137-38.) In any case, the Court notes that the majority of the items challenged herein are expressly recoverable under Code Civ. Proc. § 1033.5. The Court finds that Defendant has failed to meet the burden of demonstrating that the challenged costs are unrecoverable, excessive and/or unreasonably incurred under either Civ. Code § 1794(d) or Code Civ. Proc. § 1033.5. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131; Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816-817; Rappenecker v. Sea-Land Service, Inc. (1979) 93 Cal.App.3d 256, 266.) The clerk shall enter the cost award on the judgment in this matter. (Cal. Rules of Ct., rule 3.1700(b)(4).)

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